

# EMPLOYMENT CONTRACT AGREEMENT

Between TechCorp Pvt. Ltd. and Employee

## 1. PARTIES

This Employment Contract Agreement (hereinafter referred to as 'Agreement') is entered into on January 1, 2024, between TechCorp Pvt. Ltd., a company incorporated under the Companies Act, having its registered office at 123 Business Park, Mumbai, Maharashtra (hereinafter referred to as 'Employer') and Mr. Rahul Sharma, residing at 456 Residential Colony, Pune, Maharashtra (hereinafter referred to as 'Employee').

## 2. POSITION AND DUTIES

The Employee is hired as a Senior Software Engineer. The Employee shall report to the Engineering Manager and shall be responsible for designing, developing, and maintaining software applications. The Employee agrees to devote full working time and attention to the duties assigned.

## 3. COMPENSATION AND SALARY

The Employer agrees to pay the Employee a monthly gross salary of Rs. 1,50,000 (One Lakh Fifty Thousand Rupees). The salary shall be credited to the Employee's bank account on or before the 5th of every month. The Employee shall also be eligible for an annual performance bonus of up to 20% of annual CTC, subject to company performance and individual performance rating.

## 4. LEAVE POLICY

The Employee is entitled to the following leaves per calendar year:

| Leave Type             | Days Per Year | Carry Forward     |
|------------------------|---------------|-------------------|
| Casual Leave           | 12 days       | No                |
| Sick Leave             | 10 days       | No                |
| Earned/Privilege Leave | 15 days       | Yes (max 30 days) |
| Maternity Leave        | 26 weeks      | N/A               |
| Paternity Leave        | 5 days        | No                |
| Public Holidays        | 12 days       | No                |

Sick leave cannot be accumulated or encashed. Employees must provide a medical certificate for sick leave exceeding 3 consecutive days.

## **5. WORKING HOURS**

The standard working hours are 9:00 AM to 6:00 PM, Monday to Friday. The Employee may be required to work on weekends or holidays in exceptional circumstances, for which compensatory off will be provided. Total working hours per week shall not exceed 45 hours. Overtime beyond 45 hours per week shall be compensated at 1.5x the hourly rate.

## **6. PROBATION PERIOD**

The Employee shall be on probation for a period of 6 (six) months from the date of joining. During the probation period, either party may terminate this agreement with 15 days written notice. Upon successful completion of probation, the Employee shall be confirmed as a permanent employee.

## **7. TERMINATION CLAUSE**

After confirmation, either party may terminate this agreement by providing 90 days written notice or payment in lieu of notice. The Employer reserves the right to terminate employment immediately without notice in cases of gross misconduct, fraud, theft, or violation of company policies. Upon termination, the Employee must return all company property including laptop, access cards, and any confidential documents within 24 hours.

## **8. CONFIDENTIALITY AND NON-DISCLOSURE**

The Employee agrees to keep all company information strictly confidential during and after employment. This includes source code, client information, business strategies, financial data, and trade secrets. Breach of confidentiality may result in immediate termination and legal action. This clause shall remain in effect for 2 years after termination of employment.

## **9. NON-COMPETE CLAUSE**

For a period of 1 year after leaving TechCorp, the Employee shall not join any direct competitor or start a competing business without prior written consent from TechCorp. Direct competitors include companies operating in the same domain and geography. Violation of this clause may result in legal proceedings and claim for damages.

## **10. EMPLOYEE BENEFITS**

The Employee shall be entitled to the following benefits: (a) Health Insurance of Rs. 5,00,000 per year covering self and family. (b) Provident Fund contribution of 12% of basic salary by both employer and employee. (c) Gratuity as per the Payment of Gratuity Act after completion of 5 years of service. (d) Annual medical checkup at company expense. (e) Internet reimbursement of Rs. 1,000 per month for

work from home days.

## **11. DISPUTE RESOLUTION**

Any dispute arising from this Agreement shall first be resolved through mutual discussion. If unresolved within 30 days, the matter shall be referred to arbitration in Mumbai. The arbitration shall be conducted as per the Arbitration and Conciliation Act, 1996. The decision of the arbitrator shall be final and binding on both parties.

## **12. GOVERNING LAW**

This Agreement shall be governed by and construed in accordance with the laws of India. The courts of Mumbai shall have exclusive jurisdiction over all disputes arising from this Agreement.

## **SIGNATURES**

For TechCorp Pvt. Ltd.

Employee

\_\_\_\_\_  
Authorized Signatory

Date: \_\_\_\_\_

\_\_\_\_\_  
Rahul Sharma

Date: \_\_\_\_\_